



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00248 / 2121 E 12th Street Zone Change
Date: August 22, 2022

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 8/22/2022
- Public Services Committee 9/7/2022
- Second reading 9/12/2022
- Public Services Committee 9/20/2022
- Third and final reading 9/26/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their August 1, 2022 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Related Items:

- UDC-22-00248-02 / Lake Minnehaha III Final Plat

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MR MEDIUM-DENSITY RESIDENTIAL TO NR-2 NEIGHBORHOOD RESIDENTIAL – MEDIUM DENSITY FOR LAND LOCATED SOUTH OF 12TH STREET, EAST OF LOGAN AVENUE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on August 1, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1 and Lot 1½, Block 18, Re-subdivision of Lake Minnehaha Addition, Cheyenne, Wyoming, is hereby changed to NR-2 Neighborhood Residential – Medium Density.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION

AUGUST 1, 2022

STAFF REPORT

FILE: UDC-22-00248: 2121 E 12th Street – Zoning Map Amendment (zone change)

REQUEST: A request to rezone approximately 0.15 acres of land from MR Medium-density Residential to NR-2 Neighborhood Residential – Medium Density

LOCATION: South of 12th Street, East of Logan Avenue

APPLICANT: Kirk Johanson

AGENT: Kirk Johanson

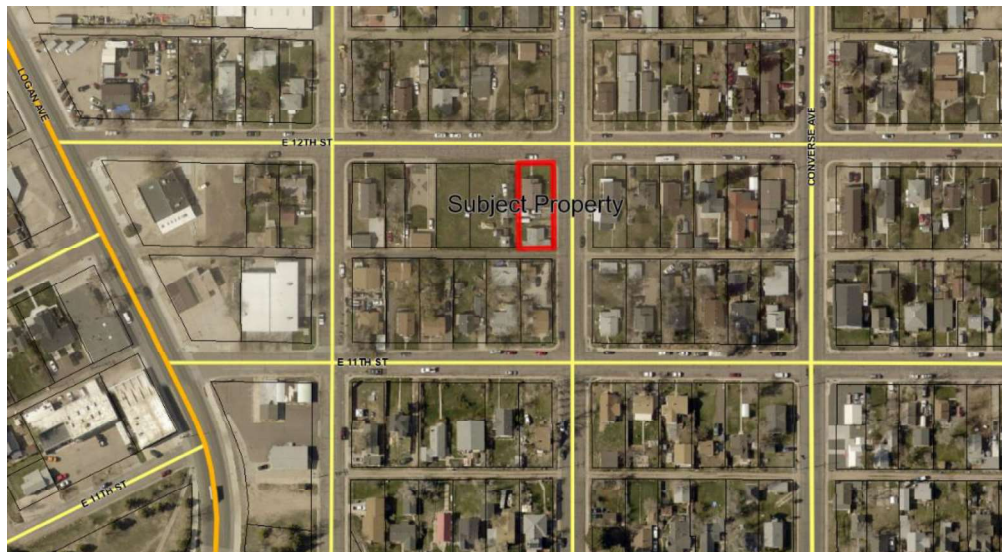
OWNER: Results Real Estate, LLC

ZONING: MR Medium-density Residential

FUTURE LAND USE: Urban Residential

PURPOSE: To allow the property to be subdivided to put one house on each lot.

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lots 1 and 1½, Block 18, Resubdivision of Lake Minnehaha Addition to NR-2 Neighborhood Residential – Medium Density as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from MR Medium-density Residential to NR-2 Neighborhood Residential – Medium Density for 0.15 acres of land. The land is currently occupied by two houses on one ownership parcel. The property is anticipated to largely remain ‘as is’ with some upgrades. The properties would be divided for individual sale.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Urban Residential	MR Medium-density Residential	Single-family residential (2 houses)
North	Urban Residential	MR Medium-density Residential	Single-family residential
South	Urban Residential	MR Medium-density Residential	Single-family residential
East	Urban Residential	MR Medium-density Residential	Single-family residential
West	Urban Residential	MR Medium-density Residential	Vacant

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure. Plan Cheyenne also encourages infill development (although it is not the intent of the plan to change existing, stable neighborhoods).

The Future Land Use Designation for this property is and the surrounding area is Urban Residential. According to comprehensive plan the optimal City zones for the subject property's future land use designation is any one of the residential zones, including NR-2.

Based on the policies and future land use map, NR-2 zoning is appropriate at this location.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

All surrounding properties are zoned MR. Both the MR and NR-2 zones are medium-density residential zones. The difference is that NR-2 zoning anticipates alley-loaded development, allows smaller lots, and has a higher design standard. NR-2 zoning is compatible with surrounding zoning.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The MR, as put forward in the UDC, is intended for larger-block, front-loaded, suburban style development patterns (like Saddle Ridge or The Pointe). NR-2 zoning is intended for smaller-block, rear-loaded, compact development patterns (like what is found in the Avenues). Unfortunately, after the adoption of the UDC, a comprehensive map amendment was not pursued, or neighborhoods like this one may have been changed to the new NR-2 zone. In short, the proposed NR-2 zone is more consistent with the existing development pattern of this neighborhood than the current MR zone.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The zone change is occurring in a pre-existing neighborhood. No changes to the street network are proposed. The neighborhood meets the smaller block sizes anticipated for NR-2 zoning.

Accesses will not be changed with the zone change.

Infrastructure (streets and utilities) exist in the area.

The proposed zone change for the subject property **complies** with review criterion 4.

- 5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The NR-2 zone is intended for a medium density and mix of dwelling types that promote a consistent neighborhood character, with a compact development pattern and highly connected street network. The existing neighborhood meets these objectives.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The NR-2 zone allows a variety of residential uses (as does the current MR zone). Should this particular project require a different style of redevelopment, NR zoning provides a few more options for infill residential development.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, review comments were received expressing the appropriateness of the NR-2 zone at this location.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The NR-2 zone is appropriate based on the future land use map, surrounding zoning, and surrounding development patterns.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

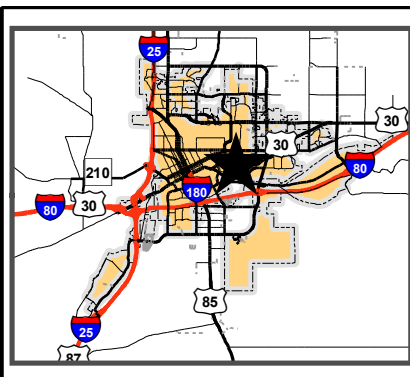
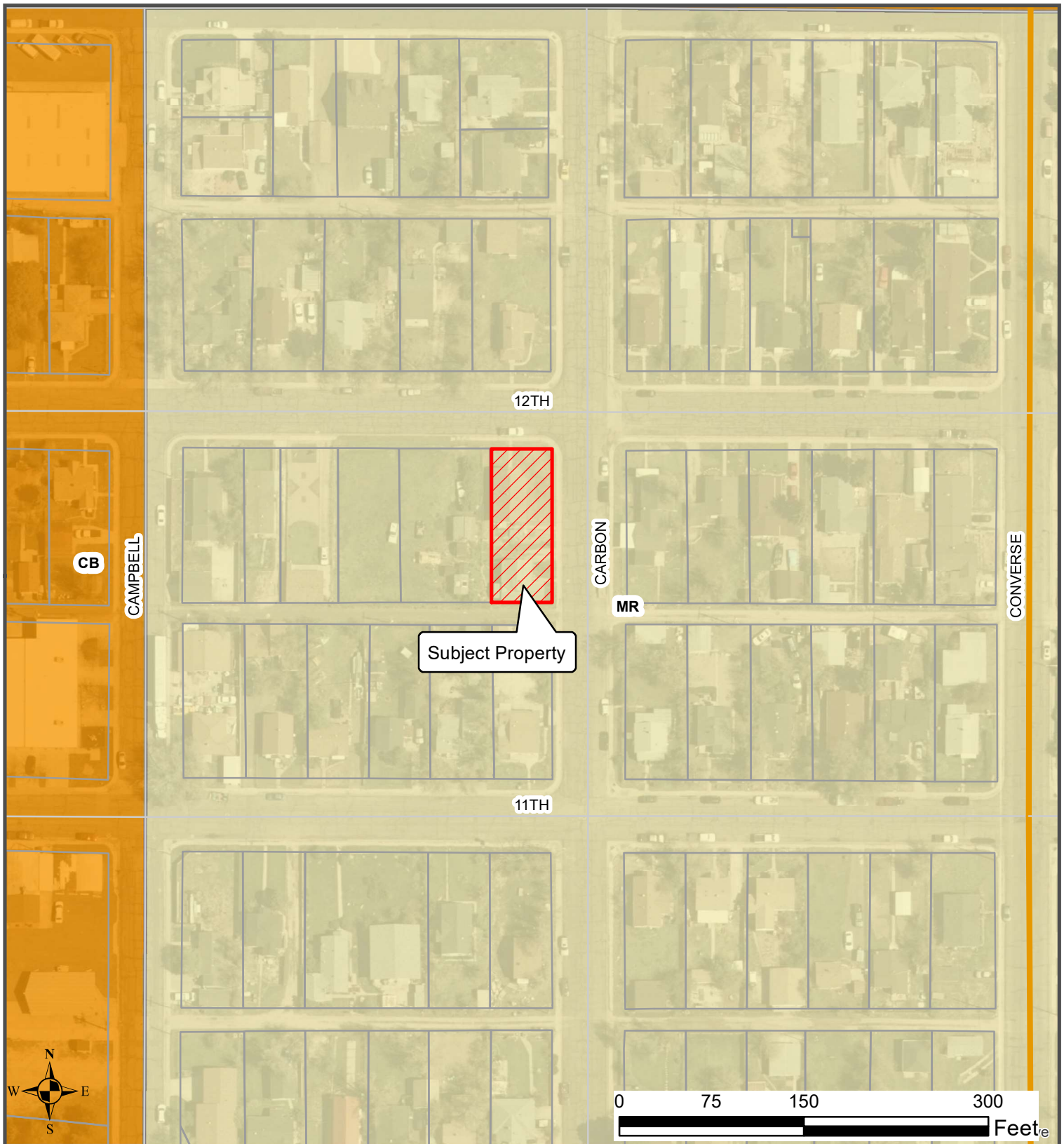
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from MR to NR-2.

ATTACHMENTS:

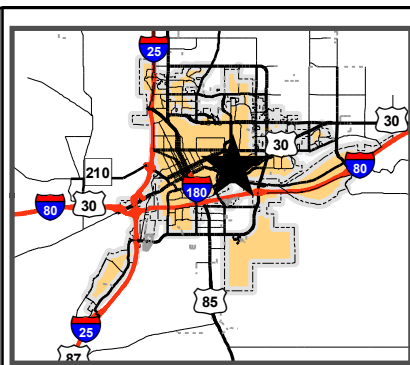
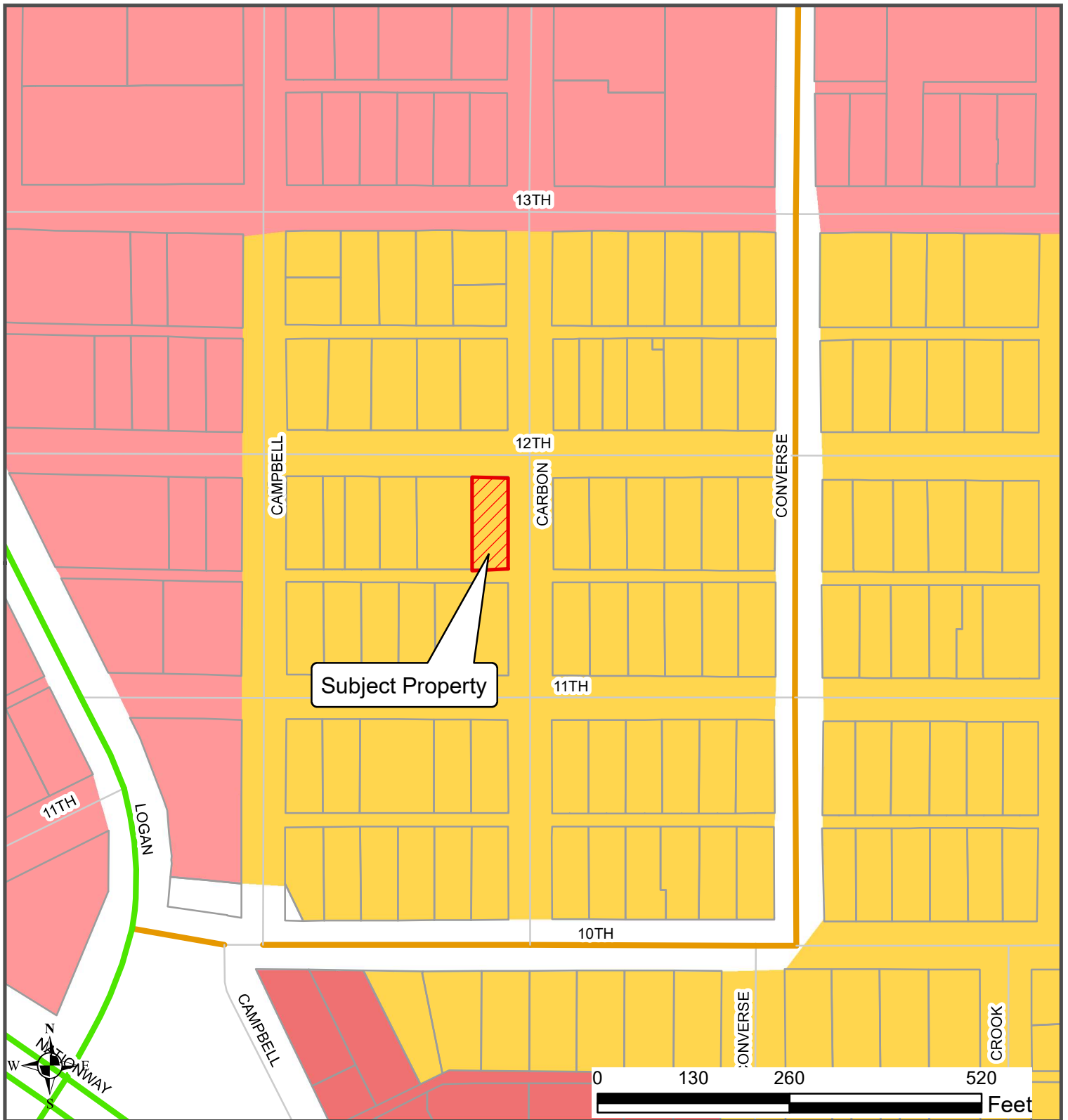
1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Maps



Attachment 1: Zoning Map UDC-22-00248

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend	
	Nov19_CityLimits
	Interstate
	Principal Arterial
	Minor Arterial
	Major Collector
	Minor Collector
	Local
	Private
	Platted not built
	HR / High Density Residential
	MR / Medium Density Residential
	LR / Low Density Residential
	NR-2 / Neighborhood Residential - Med. Density
	NR-3 / Neighborhood Residential - High Density
	AR / Agricultural Residential
	A-1 / Agricultural and Rural Residential
	A-2 / Agricultural
	AG / City Agricultural
	MUR / Mixed Use Residential Emphasis
	CBD / Central Business District
	CB / Community Business
	NB / Neighborhood Business
	MU / Mixed Use - County
	MUB / Mixed Use Business Emphasis
	MUE / Mixed Use Employment Emphasis
	HI / Heavy Industrial
	LI / Light Industrial
	P / Public
	AD / Airport District
	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map UDC-22-00248

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Zoning Map Amendment Application

Submission date: **24 June 2022, 11:12AM**

Receipt number: **33**

Related form version: **10**

General Information

Applicant Name: **Kirk Johanson**

Applicant Address: **1808 N Boise Ave, Suite 200**

Applicant City: **Loveland**

Applicant State: **Colorado**

Applicant Zip Code: **80538**

Applicant Phone: **970-988-3244**

Applicant Email: **nocohomebuyer@gmail.com**

Representative Name: **Kirk Johanson**

Representative Address: **1808 N Boise Ave, Suite 200**

Representative City: **Loveland**

Representative State: **Colorado**

Representative Zip Code: **80538**

Representative Phone: **970-988-3244**

Representative Email: **nocohomebuyer@gmail.com**

Owner Name: **Results Real Estate, LLC**

Owner Address: **1808 N Boise Ave, Suite 200**

Owner City:	Loveland
Owner State:	Colorado
Owner Zip Code:	80538
Owner Phone:	970-775-2196
Owner Email:	nocohomebuyer@gmail.com
Who is the primary contact regarding this application?	Applicant
Letter of Authorization	letter-of-authorization.pdf
Project Location (Street Address or General Location):	2121 E 12th Street, Cheyenne, WY 82001
Assessor's Parcel ID number(s)	
Total Project Area	6,347 Square Feet
Existing Zoning	MR - Medium-density Residential
Requested Zoning	NR-2 - Neighborhood Residential - Medium Density

Application-Specific Questions

Written Statement	I would like to split the lot into two lots. One residence per lot to be sold separately.
Zoning Map	Zoning Map_June 2022.pdf
Notification Letter	Neighbor-Notification-Letter_06.24.22.pdf Notification Letter__ Address List.docx
Supporting Documents / Information	2121 E 12th_Front View.png View From Carbon.png 2121 E 12th-1114 Carbon.jpg Alley View.png

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

Acknowledgement of this review criteria

The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: Kirk Johanson

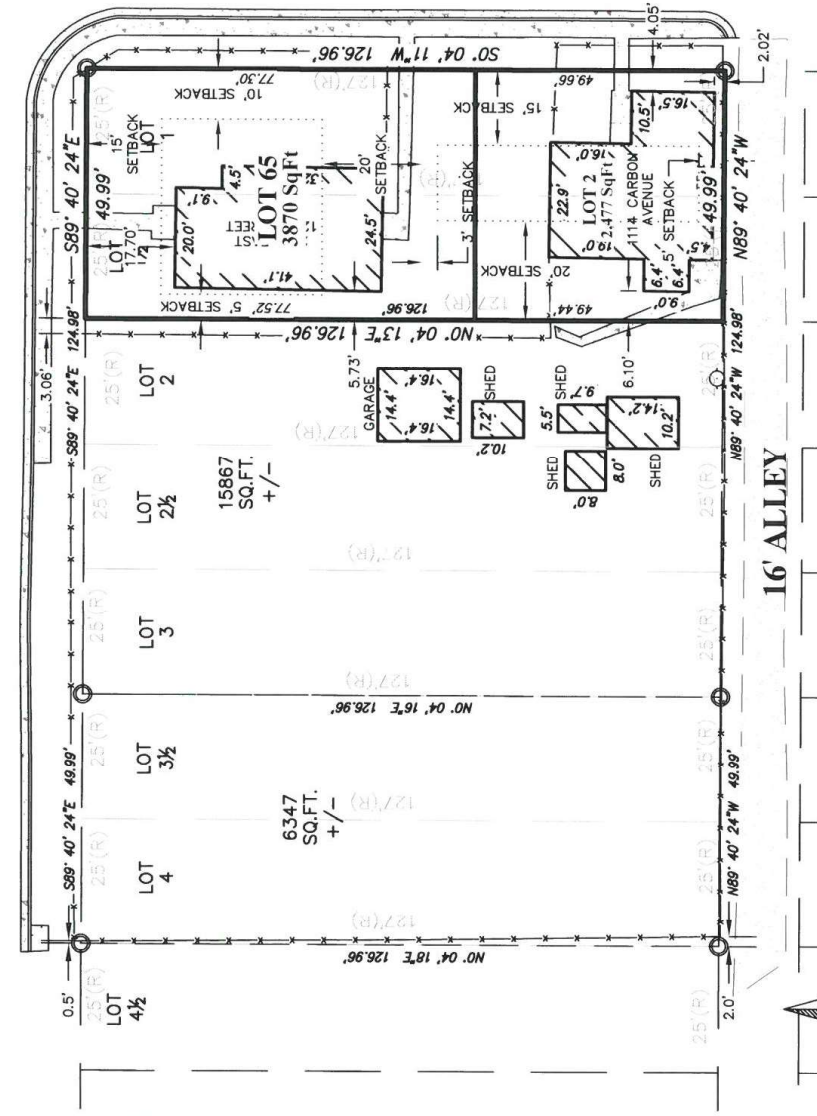
A handwritten signature in blue ink, appearing to read 'Kirk Johanson', is written over two horizontal lines. The signature is stylized with a large 'K' and a long horizontal stroke.

Uploaded signature image: [Signature.png](#)

Please enter an email address for an email receipt.

nocohomebuyer@gmail.com

EAST 12TH STREET (60' R/W)



SET 5/8" X 24" LONG REBAR WITH 1 1/2" ALUMINUM
CAP STAMPED "SSS P.L.S. 5910"

- | | |
|---|-----------------------------|
|  | SET 5/8" X 24" LONG REBAR |
|  | CAP STAMPED "SSS P.L.S. 59" |
|  | EXISTING UTILITY POLE |
|  | EXISTING FENCE LINE |
|  | EXISTING CONCRETE SURFACE |
|  | EXISTING GRAVEL SURFACE |

**SUBDIVISION/SETBACK EXHIBIT
FOR**

2121 EAST 12TH STREET,
1114 CARBON AVENUE,
LOTS 1 AND 1½, BLOCK 18,
LAKE MINNEHAHA, RESUBDIVISION,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING.



REVISED: 1/26/2022
21335_FINAL-LOTSPLIT.DWG

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